

11TH SCH.
—cont.

applicable not only to land vested in the university or college or in any body constituted for holding land belonging to the university or college and held as the property or for the general purposes of the university or college, but also to land so vested which may be held upon any trusts, or for any special endowment or other purposes, connected with the university or college.

“(2) The powers conferred by this Act on a university or college may, as respects each particular university or college, be exercised by such body and in such manner as may be provided by the statutes regulating that university or college.”

CHAPTER 6.

An Act to make valid certain charges imposed
and levies made during the late War.

[5th March 1925.]

Most Gracious Sovereign,

WHEREAS during the late War certain Government Departments purporting to act in the execution of duties imposed, and in pursuance of powers conferred, upon them by the Defence of the Realm Regulations, Orders made under those Regulations or otherwise howsoever, respectively imposed, or purported to impose, directly or indirectly, certain charges by way of payments required to be made either on or in connection with the grant of licences or permits issued, or purporting to be issued, in pursuance of the said powers or in connection with the control of the supplies or of the prices of certain commodities, and thereafter levied certain of the sums payable or alleged to be payable by virtue of the said charges, but certain of the said sums remained unpaid at the commencement of this Act:

And whereas the power in law of the said Government Departments to impose the said charges, or certain of them, and to levy the said sums, or certain of them, has been called in question:

Now, therefore, we, Your Majesty's most dutiful and loyal subjects, the Commons of the United Kingdom of Great Britain and Ireland in Parliament assembled, have resolved that it is expedient that legal validity should be given to the imposition and levying of certain of the

charges aforesaid comprising all the charges specified in the Schedule to this Act; and do accordingly most humbly beseech Your Majesty that it may be enacted, and be it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. Subject as hereinafter provided, the imposition of the charges specified in the Schedule to this Act, and the levying of the sums thereby charged shall be, and shall be deemed always to have been, valid in law, and accordingly—

Validity of
certain War
charges and
levies.

- (a) any sum so charged on any person but not levied or paid before the commencement of this Act may be recovered as a debt due to His Majesty; and
- (b) no proceedings whatsoever shall be instituted by any person in any court of law or before any other tribunal whatsoever for the repayment to him of any sums so levied as aforesaid, or for compensation in respect of the making of any such levy, and if any such proceedings have been instituted before the date of the passing of this Act, they shall be discharged and made void, and any judgment of any court or tribunal obtained after the eighteenth day of December, nineteen hundred and twenty-four, in any such proceedings shall be void:

Provided that where any such proceedings (not being proceedings the institution of which was barred by the Indemnity Act, 1920, or any other Act) were instituted before the nineteenth day of December, nineteen hundred and twenty-four, and are pending at the date of the passing of this Act, the person by whom the proceedings were instituted shall, unless the court or a judge of the court or the tribunal dealing with the case thinks just to order otherwise, be entitled to an order directing payment, and, if necessary, taxation as between solicitor and own client, of his costs, charges, and expenses of and incidental to the proceedings, other than any such costs, charges, or expenses

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Geo. 5. c. 48.

incurred after the eighteenth day of December, nineteen hundred and twenty-four.

Short title.

2. This Act may be cited as the War Charges (Validity) Act, 1925.

SCHEDULE.

PARTICULARS OF CHARGES.

1. Charges imposed by the Food Controller on licences—
 - (a) under the Flour and Bread (Prices) Order, 1917, the Flour and Bread (Prices) Order, 1920, and amending Orders to obtain flour for purposes other than the baking of bread, cakes or biscuits for retail sale ;
 - (b) under the Wheat (Channel Islands and Isle of Man Export) Order, 1917, to export wheat to the Channel Islands and the Isle of Man ;
 - (c) authorising the brewing of additional beer for munition and agricultural workers ;
 - (d) authorising the dealing in and the inter-zonal movement of potatoes.
2. Charges imposed by the Food Controller—
 - (a) on dealers in and retailers of flour in connection with the Bread Subsidy Reduction Schemes ;
 - (b) on brokers in respect of the increased value of hides sold to them at fixed prices ;
 - (c) under the Imported Meat (Requisition) Order, 1919 ;
 - (d) under the Cattle (Feeding Stuffs) Scheme.
3. Charges made in connection with the control of the supplies of cotton.
4. Charges imposed by the Board of Trade on licences to import or export goods contrary to prohibitions.
5. Charges imposed by the Hop Controller on licences to import foreign hops.
6. Charges imposed by the Ministry of Munitions in connection with the export of steel and pig iron and permits to increase stocks of steel.
7. Charges imposed by the Ministry of Shipping on licences to transfer ships to a foreign flag.

8. Charges imposed by the War Office and the Ministry of Munitions on—

- (a) tanners in respect of leather made from home-grown hides;
- (b) licences to import upper and sole leather purchased abroad before 23rd February 1917;
- (c) licences to export stocks of rough leather.

9. Charges imposed by the Ministry of Munitions on licences to export glycerine.

CHAPTER 7.

An Act to indemnify and relieve William Preston, Esquire, from any penal consequences which he may have incurred or suffered by sitting or voting as a member of the House of Commons during a time when he was executing, holding or enjoying a contract, agreement or commission made or entered into with the Postmaster-General, and for purposes incidental thereto.

[5th March 1925.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. William Preston, Esquire, shall be and is hereby indemnified, freed, and discharged from and against all forfeitures, incapacities, or other penal consequences whatsoever (if any) already incurred by him by sitting or voting as a member of the House of Commons during a time when he was executing, holding or enjoying a contract, agreement or commission made or entered into with the Postmaster-General.

Indemnifi-
cation of
William
Preston,
Esquire.

2. This Act may be cited as the William Preston Short title. Indemnity Act, 1925.